

26STCV00566 26STCV00566

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-07-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C07%2F29%2F2026

Source SHA-256: 43464472a2da44a9731265b538ff26706d82c731b213d75332cd92eeb97fc385

Case Number: 26STCV00566 Hearing Date: July 29, 2026 Dept: 408

Defendant Shining Starz

Investment, LLC's Motion to Quash Service of Summons and

Complaint is GRANTED.

I.

BACKGROUND

On January 7, 2026, Plaintiff Gwen A. Wheat ("Plaintiff") filed a complaint against Defendants Carrington Mortgage Services ("Carrington"), Reverse Mortgage Funding, LLC ("Reverse"), Celink, Maverick Funding Corp. ("Maverick"), and Shining Starz Investment, LLC ("Shining", collectively "Defendants") alleging causes of action for:

1.

Wrongful

Foreclosure;

2.

Declaratory

Relief;

3.

Quiet

Title;

4.

Fraud

in the Execution/Fraud in the Factum;

5.

Violation

of California Civil Code § 2924.17;

6.

Unfair

Business Practices, Civil Business & Professions Code § 17200;

7.

Negligent

Representation;

8.

Intentional

Infliction of Emotional Distress;

9.

Unjust

Enrichment; and

10. Financial Elder

Abuse (California Welf. & Inst. Code § 15610.30).

On March 17, 2026,

Plaintiff filed a First Amended Complaint ("FAC").

On April 24, 2026,

pursuant to Plaintiff's request, default was entered against Reverse.

On April 28, 2026,

pursuant to Plaintiff's request, default was entered against Maverick.

On April 29, 2026, the court denied Plaintiff's Motion for Preliminary

Injunction as moot.

On June 2, 2026,

pursuant to Plaintiff's request, default was entered against Shining.

On June 9, 2026, the court overruled Carrington's Demurrer to Plaintiff's

complaint as moot.

On June 22, 2026, Shining ("Moving Defendant") filed this Motion to Quash Service of Summons and Complaint. On July 17, 2026, Plaintiff filed an opposition. On July 20, 2026, Moving Defendant filed a reply.

On June 22, 2026, Carrington and Celink filed a General Denial to Plaintiff's FAC.

II.

LEGAL STANDARD

A

defendant may move to quash service of summons on the ground the court lacks personal jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) A court lacks jurisdiction over a party if there has not been proper service of process. (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.)

"Although

the defendant is the moving party, the plaintiff must carry the initial burden of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California." (In re Automobile Antitrust Cases I and II (2005) 135 Cal.App.4th 100, 110; see also Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868 [when a defendant moves to quash service of summons, the plaintiff has "the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service"].)

"[C]ompliance with the statutory procedures for service

of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1440, 1444.) "[T]he filing of a proof of

service creates a rebuttable presumption that the service was proper" but only

if it "complies with the statutory requirements regarding such proofs." (Id.,

at 1441-1442; Floveyor Internat. v. Superior Court (1997) 59 Cal.App.4th 789, 795 [a filed proof of service creates rebuttable presumption that service was proper if it complies with statutory requirements].)

Plaintiffs must demonstrate personal jurisdiction by a preponderance of evidence, based upon competent evidence, and not on an unverified complaint. (Jewish Defense Org. v. Superior Court (1999) 72 Cal.App.4th 1045, 1054-1055.) A trial court has discretion as to whether to accept a process server declaration, or contradictory evidence, in deciding whether service of a summons and complaint was validly accomplished. (Am.

Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

III.

DISCUSSION

Moving Defendant seeks to quash

Plaintiff's service of summons and complaint pursuant to Code of Civil Procedure section 418.10.

On June 2, 2026, Plaintiff filed a Proof of Service attesting that Latiss Pugh ("Pugh") personally served Moving Defendant's agent for service, Justin Yao ("Yao"), with the complaint, FAC, and relevant documents on April 25, 2026, around 11:29 AM at 11731 Alabama Street, Los Angeles, CA 90059 ("Alabama Property"). (Motion, at p. 3; Proof of Service, dated June 2, 2026.) On June 2, 2026, default was entered against Moving Defendant.

Plaintiff's Proof

of Service appears to comply with the statutory requirements for service of process by personal service. (Code Civ. Proc., § 415.10 ["A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served."].) Thus, the Proof of Service is afforded a rebuttable presumption of proper service. (Dill, supra, 24 Cal.App.4th at 1441.)

Moving Defendant contends that Yao could not have been personally served on April 25, 2026, as Yao resides in San Francisco, California and has never been on the property allegedly served. (Motion, at p. 3; Yao Decl., ¶ 4.) In support, Yao provides copies of Uber receipts which reflects his use of Uber services in San Francisco on April 25, 2026, and April 26, 2026. (Yao Decl., ¶ 5, Exh. 1.)

In opposition, Plaintiff contends that previous attempts of service on Moving Defendant had been unsuccessful at its business address, 18883 Amberly Place, Rowland Heights, CA 91748 ("Amberly Property"). (Opp., at pp. 2-3, Exhs. A-C.) Plaintiff further contends that, on April 25, 2026, a male individual was present at the Alabama Property and identified himself as the owner of Shining. (Id., at p. 4.) The individual supposedly identified

himself as “Justin Yao” and was present to escort Pugh off the property. (Ibid.) Once Yao had identified himself, Pugh grabbed the documents to be served and handed them to Yao. (Ibid.)

Plaintiff argues that the Moving Defendant has not produced competent evidence to rebut the presumption of proper service based on the Uber receipts attached. (Id., at p. 6.) Plaintiff also argues that Moving Defendant has intentionally evaded service based on its previous pattern of negating access to servers at the Amberly Property and refusing to sign and return the Notice and Acknowledgement of Receipt mailed to Moving Defendant. (Id., at pp. 6-7.) Plaintiff also notes that Moving Defendant failed to serve the instant motion on Plaintiff and that no proof of service was filed stating otherwise. (Id., at pp. 8-9.)

The court finds that Plaintiff failed to provide sufficient evidence demonstrating that the service attempt on April 25, 2026, did effectuate proper service on Moving Defendant through Yao. In fact, Plaintiff does not attach any evidence to support the recount of Pugh's service attempt at the Alabama Property nor disputes that Yao resides in San Francisco. On the other hand, Moving Defendant provides the declaration of Yao to demonstrating that Yao could not have been present for service as characterized. The uncontroverted evidence demonstrates that service was not proper. The mere fact that previous unsuccessful attempts of service exist does not show that Moving Defendant is evading service. The court will disregard any deficiencies as to the notice of this motion based on Plaintiff's ability to file an opposition.

Accordingly, the motion is granted.

IV.

CONCLUSION

Defendant Shining Starz Investment, LLC's Motion to Quash Service of Summons and Complaint is GRANTED.